



**UNITED STATES
DISTRICT COURT
DISTRICT OF MINNESOTA**

Warren E. Burger Federal
Building and U.S. Courthouse
316 North Robert Street
Room 100
St. Paul, MN 55101

Diana E. Murphy
U.S. Courthouse
300 South Fourth Street
Room 202
Minneapolis, MN 55415

Gerald W. Heaney Federal
Building and U.S. Courthouse
and Customhouse
515 West First Street
Duluth, MN 55802

Edward J. Devitt U.S.
Courthouse and Federal
Building
118 South Mill Street
Fergus Falls, MN 56537

**UNITED STATES DISTRICT COURT
FOR THE
DISTRICT OF MINNESOTA**

**BILL OF COSTS GUIDE
DECEMBER 2025**

This guide was prepared by the Office of the Clerk of Court to assist parties in properly filing Bills of Costs and associated documentation with this Court. This guide is not legal advice or legal authority and should not be cited as authority in any filing in this Court. Nothing in this guide will create or add to any rights, claims, or causes of action. This guide is subject to exception and modification and is to be used in conjunction with the Federal Rules of Civil Procedure and the Local Rules of this Court.

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INTRODUCTION

This guide has been prepared to assist parties in the preparation of bills of cost in this District. The procedure for taxing costs under Fed. R. Civ. P. 54(d) and the Clerk's authority to tax costs vary widely between district courts. The Clerk's Office encourages parties to review this guide thoroughly and consult all applicable law when preparing a bill of costs in the U.S. District Court for the District of Minnesota.

Federal Rule of Civil Procedure 54(d)(1), states that "costs-other than attorney's fees-should be allowed to the prevailing party." The costs that may be taxed are generally outlined at 28 U.S.C. § 1920.

In this District, Local Rule ("LR") 54.3(c) prescribes the procedure for taxation of costs. Under LR 54.3(c)(1)(A), a bill of costs must be filed within 30 days after judgment is entered. Parties are then able to file objections and a response to any objections filed. LR 54.3(c)(1)(B)-(C). Thereafter, unless otherwise directed by the Court, the Clerk of Court will tax costs. LR 54.3(c)(2). The Clerk's action consists of a Cost Judgment, which states the amount of costs taxed against a party, and a Taxation of Costs Summary, which provides a brief explanation of the Clerk's action to allow or deny the stated costs. Thereafter, any party may file a motion to review the Clerk's action with the presiding judge. LR 54.3(c)(3).

The Clerk's authority to tax costs is limited by statute, rule, case law, and local practice. In general, the Clerk will deny costs that are beyond the Clerk's authority to tax or where the authority to tax such costs is unclear.

PROCEDURES FOR FILING BILLS OF COST

A. How to File a Bill of Costs

1. Local Rule 54.3(c)

Local Rule 54.3(c) outlines the procedure for taxing costs in this District. LR 54.3(c)(1)(A) states that "[w]ithin 30 days after judgment is entered, a party seeking costs must file and serve a verified bill of costs using a form available from the clerk." The Clerk's form is the AO 133, which is available on the Court's website at

<https://www.mnd.uscourts.gov/forms/all-forms>.

2. Verified bill of costs

Under LR 54.3(c)(1)(A), all bills of cost must be verified. Attached to the bill of costs should be copies of any vouchers, bills, canceled checks, or other documentation (i.e. explanatory memorandum or affidavit) showing the amount of the costs and/or their purpose.

Generally, an invoice is sufficient documentation of a cost. It is not necessary to submit multiple forms of documentation for a single cost.

❖ Important: The Clerk will generally not tax costs unless sufficient documentation is provided, including costs that were not objected to by the opposing party.

3. Filing the bill of costs

All parties who are filing electronically must file the bill of costs in CM/ECF, using the "Bill of Costs" event. All supporting documentation should be filed as attachments in that same event. More information on the CM/ECF Procedures related to Bills of Cost is provided below.

❖ Important: Redact all personal identifiers, such as financial account numbers and tax identification numbers, from all documentation submitted in relation to a bill of costs in accordance with Fed. R. Civ. P. 5.2.

B. When to File a Bill of Costs

1. District Court costs

Under LR 54.3(c)(1)(A), the party seeking costs must file and serve a bill of costs "[w]ithin 30 days after judgment is entered."

2. Appeal costs

Local Rule 54.3(d) states:

(1) At the request of the circuit clerk under Fed. R. App. P. 39(e)(3), the clerk must promptly add the statement of costs on appeal (or any amendment of that statement) to the mandate of the court of appeals.

(2) A party that seeks costs taxable under Fed. R. App. P. 39(f) must file a verified bill of costs (or amended bill of costs) within 14 days after the court of appeals issues the mandate. The procedures described in LR 54.3(c) - except the deadline for filing the initial bill of costs found in LR 54.3(c)(1)(A) - govern a bill of costs under this subsection.

C. Motions to Stay Costs Pending Appeal

Bills of Cost will be processed even if an appeal is filed or pending. Motions to Stay Costs Pending Appeal should be made directly to the District Judge in the case in accordance with LR 7.1. Do not request to stay the determination of costs in an Objection to the Bill of Costs as the Clerk does not have authority to determine a request for a stay.

D. Only Prevailing Parties are Entitled to Tax Costs

Under Fed. R. Civ. P. 54(d), costs "should be allowed to the prevailing party." Generally, a party is considered a "prevailing party" when a judgment has been entered in its favor. There are circumstances, however, when it is not clear whether a party prevailed for purposes of taxing costs. If it is unclear whether the party who filed a bill of costs is a "prevailing party," the Clerk may deny all costs and the party may file a motion to review the Clerk's action. See LR 54.3(c)(3).

E. Cases Involving Multiple Parties

In cases involving more than a single plaintiff or a single defendant, the Clerk will not award the same cost more than once.

Generally, where multiple prevailing parties or multiple losing parties are represented by the same counsel, it is assumed that they may be treated as a single party for purposes of taxing costs. If this is not the situation, a party should provide an explanation as to why the parties should be treated differently and how they should be treated differently.

Where multiple prevailing parties or multiple losing parties are represented by different counsel, it is assumed they should be treated as separate parties for purposes of taxing costs. In this situation, the party filing the bill of costs or the opposing party should provide an explanation as to which costs are attributable to each party and how they should be apportioned.

❖ **Important:** If there are multiple parties involved and an insufficient explanation is provided as to how to apportion costs, the Clerk may deny all costs and the party may file a motion with the presiding judge to review the Clerk's action. LR 54.3(c)(3).

F. Agreements Between Parties as to Costs

Parties may agree on the amount of costs to be paid at any time before the Clerk issues a Cost Judgment. When such an agreement occurs, the parties, or one party on behalf of all parties, should file in ECF a letter to the Clerk notifying the Clerk of the agreement. The letter may request, if desired, that a cost judgment be entered in favor of the prevailing party for the agreed upon amount. The letter should identify the docket number of the affected Bill of Costs.

G. Withdrawing a Bill of Costs

A Bill of Costs may be withdrawn by the filing party at any time before the Clerk issues a Cost Judgment. To withdraw a Bill of Costs, file in ECF a letter to the Clerk stating that the Bill of Costs is withdrawn. The letter should identify the docket number of the Bill of Costs being withdrawn.

TAXABLE COSTS

Under 28 U.S.C. § 1920, the Clerk may tax the following as costs:

A. Fees of the Clerk, 28 U.S.C. § 1920(1)

1. Taxable fees of the Clerk

Taxable fees of the Clerk most commonly refers to the initial filing fee, a pro hac vice fee or an appeal filing fee paid to the Clerk of Court. Any other fee paid to the Clerk of Court for the District of Minnesota may be taxed.

❖ **Important: Only fees paid to the Clerk of this Court are taxable by the Clerk.** Fees paid to the State Court are not taxable by the Clerk.

2. Documentation

There is no need to submit receipts for filing fees paid to the Clerk of this Court. For fees other than filing fees that were paid to the Clerk of Court, provide receipts for the cost or a reference to the applicable docket entry in the case.

B. Fees of the Marshal, 28 U.S.C. § 1920(1)

Fees of the marshal may be taxed. This District follows Eighth Circuit precedent that only the fees of the U.S. Marshal may be taxed under 28 U.S.C. § 1920(1), and therefore, fees paid to special process servers, including county sheriffs, are not taxable as costs. *Crues v. KFC Corp.*, 768 F.2d 230,234 (8th Cir. 1985). See 28 U.S.C. § 1921 for an explanation of the U.S. Marshal fees.

C. Fees for Printed and Electronically Recorded Transcripts Necessarily Obtained for Use in the Case, 28 U.S.C. § 1920(2)

1. Trial or hearing transcripts are taxable by the Clerk if the transcript was:

- i. Procured at the direction of the Court;
- ii. Prepared pursuant to stipulation of parties to tax as costs; or
- iii. Necessary for use in the case and the requesting party explains why the trial or hearing transcript was necessarily obtained.

2. Deposition transcripts (printed or electronically recorded) are taxable by the Clerk if the transcript was necessarily obtained for use in the case. The Clerk may tax deposition transcripts when:

- i. The deponent testified at trial or a potential trial witness;
- ii. The deponent is a named party in the case.
- iii. The deposition was admitted into evidence;
- iv. The deposition was submitted in connection with an event that terminated the litigation (e.g., summary judgment); or
- v. The requesting party explains why the transcript was necessarily obtained.

❖ **Important: In order to tax the costs for an electronically recorded and printed deposition transcript, the party taxing the cost must explain why both types of transcripts were necessarily obtained for use in the case.**

3. If the deposition transcript cost is taxable, the following fees of the court reporter may be taxed:

- i. Court reporter fees for attendance at and travel for depositions.
 - ii. Cost of the original transcript and one copy for a transcript if the prevailing party requested the deposition and incurred the stenographic costs.
 - iii. Cost of one copy if the prevailing party did not request the deposition and did not incur the stenographic costs.
 - iv. Costs of copies for papers obtained as exhibits in the deposition.
 - v. Electronic media support (e.g., disk, CD-ROM).
4. The following fees of the court reporter are *not* taxable by the Clerk:
- i. Costs of expedited transcripts produced solely for the convenience of counsel.
 - ii. Transcripts used primarily for trial preparation or discovery.
 - iii. Attorneys' fees and expenses incurred while taking the deposition.
 - iv. Long distance phone charges for telephonic deposition.
 - v. Court reporter postage or delivery charges for a transcript.
 - vi. Late payment fees.

❖ **Important: The requesting party must provide an explanation as to why it was necessary to have any transcript produced in an expedited manner, including realtime trial or hearing transcript feeds.**

5. Documentation to be provided:
- i. Transcript and/or deposition invoices should be submitted, indicating:
 - a. The case name or number;
 - b. The party being deposed;
 - c. The date of the deposition; and
 - d. An itemized bill of the court reporter's fee.
 - ii. An explanatory memorandum or affidavit should be provided to:
 - a. Explain how each transcript was used or why it was necessary; and
 - b. Explain why an expedited transcript was necessary.

D. Fees and Disbursements for Printing, 28 U.S.C. § 1920(3)

Fees and disbursements for printing are typically taxed by the court of appeals in its mandate.

E. Witness Fees, 28 U.S.C. § 1920(3)

The allowable witness fees are set forth in 28 U.S.C. § 1821.

1. Taxable witness fees

- i. Statutory attendance fee, 28 U.S.C. § 1821(b).
 - a. The attendance fee is \$40.00 per day. 28 U.S.C. § 1821(b).

- b. The attendance fee includes the time the witness was "necessarily occupied in going to and returning from the place of attendance at the beginning and end of such attendance." 28 U.S.C. § 1821(b).
- ii. Mileage, 28 U.S.C. § 1821(c)(2).
 - a. Mileage must be calculated at the rate for official government travel in effect at the time the travel took place. 28 U.S.C. § 1821(c)(2). Visit www.gsa.gov for the current and historical official privately owned vehicle mileage reimbursement rates.
 - b. Provide the dates of travel and the applicable mileage rate with the bill of costs.
- iii. Subsistence, 28 U.S.C. § 1821(d)(1).
 - a. A subsistence allowance may be paid to a witness "when an overnight stay is required at the place of attendance because such place is so far removed from the residence of such witness as to prohibit return thereto from day to day." 28 U.S.C. § 1821(d)(1).
 - b. The subsistence allowance may not exceed the maximum per diem allowance for official government travel in effect at the time the stay took place. 28 U.S.C. § 1821(d)(2). Visit www.gsa.gov for the current and historical subsistence per diem allowances by geographical area.
- iv. Common carrier, 28 U.S.C. § 1821(c)(1).

The actual expenses of travel by common carrier must be substantiated by a receipt or other evidence of the cost. A receipt is required when claiming airfare.

- v. Other travel expenses, 28 U.S.C. § 1821(c)(3).

"Toll charges for toll roads, bridges, tunnels, and ferries, taxicab fares between places of lodging and carrier terminals, and parking fees (upon presentation of a valid parking receipt)" may be taxed. 28 U.S.C. § 1821(c)(3).

2. Non-taxable witness fees

- i. Fees and expenses of parties.
- ii. Fees paid to any witness, including experts, beyond the statutory daily attendance fee.
- iii. Fees and expenses paid to witnesses who do not testify at trial.
- iv. Fees and expenses paid to deponents when the cost of the deposition is not taxed by the Clerk.

F. Fees for Exemplification, 28 U.S.C. §1920(4)

Exemplification costs typically include the costs for producing a demonstrative aid as an exhibit.

The Clerk generally will *not* tax exemplification costs unless the prevailing party received prior permission from the Court that these costs may be taxed.

G. Costs of Making Copies of Any Materials Where the Copies are Necessarily Obtained for Use in the Case, **28 U.S.C. § 1920(4)**

1. In this District, the Clerk will tax the costs of copies that were:
 - i. Exhibits that were conventionally filed with the Clerk;
 - ii. The two courtesy copies required to be provided to the presiding judge under the Court's Civil CM/ECF procedures;
 - iii. Conventionally filed documents that were required to be served on the opposing party;
 - iv. Documents that were required to be served on the opposing party and were conventionally served on an opposing party because the party did not have a CM/ECF account; or
 - v. Other copies that were necessarily obtained for use in the case provided that the requesting party provides an explanation as to why the copies were necessarily obtained, which may include scanning documents to create digital duplicates, copying video files to a DVD or similar format, or the conversion of native files or computer data to a readable format.
2. The Clerk will *not* tax costs of copies that were:
 - i. Obtained for discovery purposes;
 - ii. Retained by counsel for counsel's use; or
 - iii. Provided to clients.
3. Documentation
 - i. If copies are made by an outside service, a copy of the invoice should be submitted.
 - ii. The costs of in-house copying may be documented by billing records or other documentation.
 - iii. Any invoice or bill submitted should indicate or be attached to a document explaining:
 - a. The document copied, including its docket number;
 - b. The number of pages in the document;
 - c. The number of copies made;
 - d. The per page rate; and
 - e. The total cost.

- ❖ Important: The Clerk will not tax copy costs if it cannot be determined whether all or a specific number of copies claimed are taxable.
- ❖ Important: The Clerk will not tax costs associated with OCRing electronic documents, pre-processing and processing electronic data for use in an e-discovery platform or document database, adding bates labels or endorsing images, and time billed for e-discovery professional services.

H. Docket Fees, 28 U.S.C. § 1920(5)

Under 28 U.S.C. § 1923(a), certain attorney and proctor fees may be taxed, including:

1. \$20.00 on trial or final hearing, including the entry of default judgment;
2. \$5.00 on discontinuance of a civil action;
3. \$5.00 on motion for judgment and other proceedings on recognizances; and
4. \$2.50 for each deposition admitted into evidence.

To recover docket fees, the amount of the fee and the docket number to which the requested fee relates should be noted in an explanatory memorandum or affidavit.

I. Court-Appointed Experts and Interpreter Services, 28 U.S.C. § 1920(6)

1. Court-appointed experts and interpreter services
 1. Under 28 U.S.C. § 1920(6), the "[c]ompensation of court appointed experts, compensation of interpreters, and salaries, fees, expenses, and costs of special interpretation serviced under [28 U.S.C. §] 1828" may be taxed.
 - n. When the Court appoints an expert or interpreter, the Court may direct one or more of the parties to compensate the expert or interpreter and order the compensation paid to be taxed as costs, or the Court may direct that the taxed costs be used to reimburse the Administrative Office of the United States Courts for providing such special interpretation services.
2. Failure to obtain court approval

Where the prevailing party procured interpretation services without prior Court approval, costs will be assessed only for those expenses necessarily incurred. The party requesting costs has the burden of showing that the interpretation services were necessary at the time the services were received.

J. Costs on Appeal, FED. R. APP. P. 39

1. Costs inserted in the Mandate under Fed. R. App. P. 39(e)(3)

Under LR 54.3(d), "[a]t the request of the circuit clerk under Fed. R. App. P. 39(e)(3), the clerk must promptly add the statement of costs on appeal (or any amendment of that statement) to the mandate of the court of appeals." See Fed. R. App. P. 41 for more information regarding the Court of Appeal's mandate.

2. Costs taxable in the District Court under Fed. R. App. P. 39(f)

i. Under LR 54.3(d), such costs will be taxed when the seeking party files "a verified bill of costs (or amended bill of costs) within 14 days after the court of appeals issues the mandate."

ii. Appeal costs that are taxable in the district court for the benefit of the party entitled to costs under Fed. R. App. P. 39 are:

- a. The preparation and transmission of the record;
- b. The reporter's transcript, if needed to determine the appeal;
- c. Premiums paid for a bond or other security to preserve rights pending appeal;
and
- d. The fee for filing the notice of appeal.

NON-TAXABLE COSTS

The following costs are generally not allowed by the Clerk:

1. Travel and expenses of counsel, including investigation expenses;
2. Fees for computerized legal research;
3. Secretarial services, including word processing, typing charges, copy charges, and scanning charges that are incidental to an attorney's services;
4. Paralegal and/or investigative services;
5. Prejudgment and post-judgment interest;
6. Mediation costs;
7. Fees for postage, delivery (including delivery services such as Federal Express), and notary;
8. Long-distance telephone calls and fax charges;
9. Damage surveys;
10. Accountant's expenses;
11. Office overhead;
12. Translation services; and
13. Costs incurred in creating, maintaining, and searching an electronic database of documents.

PROCEDURE AFTER COSTS ARE TAXED BY THE CLERK

1. Motion for review to the Court

i. LR 54.3(c)(3) states:

(A) Within 7 days after the clerk taxes costs, a party may file and serve a motion and supporting documents for review of the clerk's action.

(B) Within 7 days after being served with the motion for review, a party may file and serve a response.

(C) Unless the court orders otherwise, a party must not file a reply brief.

ii. A motion for review may include materials that were not presented to the Clerk for review.

2. Payment for Costs

i. Once the Court has ruled on a motion for review or after the time for seeking review has expired, the amount of the cost judgment should be paid directly to the prevailing party.

ii. A party must file a satisfaction of judgment once the cost judgment has been satisfied. Costs are *not* processed through the Clerk's Office.

PROCEDURES RELATED TO BILLS OF COST

The items in bold below identify the correct ECF filing events, in order of use, for filing Bills of Costs and related documents.

1. **Bill of Costs** (must be filed within 30 days after judgment)
Use form AO 133. See LR 54.3(c)(1)(A). All documentation, explanatory memoranda, or affidavits may be provided as attachments in the same event.
2. **Objection to Bill of Costs** (must be filed within 14 days after the Bill of Costs)

Use this event when a non-taxing party does not agree with the submitted Bill of Costs. See LR 54.3(c)(l)(B).

3. **Response to Objection to Bill of Costs** (must be filed within 7 days after the Objection to the Bill of Costs)

Use this event to file a response to an objection to bill of costs. See LR 54.3(c)(l)(C).

4. **Cost Judgment**

- i. The Clerk files the Cost Judgment and attaches a Taxation of Costs Summary to explain the Cost Judgment. See LR 54.3(c)(2).
- ii. After a Cost Judgment is filed, an objecting party has 7 days to file a motion for review of the Clerk's action. See LR 54.3(c)(3).
- iii. If there is no motion for review filed, payment should be rendered and a satisfaction of judgment filed by the taxing party.

5. **Motion to Review the Clerk's Action** (must be filed within 7 days after the Cost Judgment is filed)

Use the civil motion event "**Review of Taxation of Costs.**" File the motion in accordance with LR 7.1 and the applicable CM/ECF filing procedures.

6. **Response to a Motion to Review the Clerk's Action** (must be filed with 7 days after the Motion to Review the Clerk's Action)

Use the civil event "**Response in Opposition to Motion.**" File the response in accordance with LR 7.1 and the applicable CM/ECF filing procedures.

7. **No Reply Brief Should be Filed** "[u]nless the court orders otherwise, a party must not file a reply brief." LR 54.3(c)(3)(C).

8. **Letter to Clerk's Office**

Use this event when filing a letter to notify the Clerk that the parties have reached an agreement as to costs or to withdraw a Bill of Costs.